

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 1
Honorable Eunice Lee, Presiding
TBD, Courtroom Clerk
191 North First Street, San Jose, CA 95113

DATE: June 09, 2026 TIME: 9:00 A.M. and 9:01 A.M.

**To contest the ruling, call the Court at (408) 808-6856 before 4:00 P.M.
Make sure to also let the other side know before 4:00 P.M. that you plan to contest the ruling,
in accordance with California Rule of Court, Rule 3.1308(a)(1) and Local Rule 8D.**

****Please specify the issue to be contested when calling the Court and counsel****

LAW AND MOTION TENTATIVE RULINGS

9:00 A.M.			
<u>LINES 1-2</u>	25CV469591	Nathan Pope vs Jonathan Drake et al	Demurrer (Line #1) and Motion for Stay (Line #2) OFF CALENDAR as WITHDRAWN. On June 4, 2026, counsel for Plaintiff Nathan Pope, California Department of Transportation, Greystar, Sobrato et al, SI LLC, ECC, LLC and Underground Republic appeared in Department 1 at 11 a.m. for a mediation status hearing. No appearances were made on behalf of Jonathan Drake and Amber Drake. At the hearing, counsel indicated mediation had not commenced as several new parties appeared in the case. Parties also received notice that the moving party had requested to vacate the June 9 hearing given the case status. On May 29, 2026, moving parties/Defendant Jonathan Drake and Amber Drake filed a motion to continue the Demurrer (Line #1) and Motion to Stay (Line #2). On April 17, 2026, Jonthan Drake filed a motion to stay (totaling 18 pages), the motion was accompanied by a proof of service indicating email service to the plaintiff on that same day. Defendant Underground filed opposition papers to the motion to stay (totaling 7 pages). On April 30, 2026, Amber Drake filed a demurrer the plaintiff's Second Amended Complaint ("SAC")(totaling 23 pages) that was accompanied by proof of service on March 6, 2026. On March 3, 2026, the Honorable Shella Deen issued an order, pursuant to stipulation, allowing the plaintiffs to file a Third Amendment Complaint ("TAC"), but also stated, "In the event Plaintiffs are unable or do not file a [TAC], ... Plaintiffs' prayer for punitive damages against Defendants is stricken from Plaintiffs' [SAC]." Plaintiffs did not file a TAC.

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LAW AND MOTION TENTATIVE RULINGS

			On March 6, 2026, Plaintiffs filed a DOE Amendment substituting defendant Amber Drake for Doe Defendant #1. The motion is unopposed. Per Code of Civil Procedure section 1005(b) opposition papers were due on May 27, 2026. No opposition papers were filed. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c); <i>Sexton v. Superior Court</i> (1997) 58 Cal.App.4th 1403, 1410). Failure to oppose a motion leads to the presumption that the plaintiff has no meritorious arguments. (<i>Laguna Auto Body v. Farmers Ins. Exchange</i> (1991) 231 Cal.App.3d 481, 489). Based on the foregoing, the demurrer and motion to stay is OFF CALENDAR at parties request.
<u>LINE 3</u>	26CV492170	California Civil Rights Department vs Arcadia Management Services Co.	Application Defendant Chang filed this demurrer to the complaint on September 5, 2025, the motion was accompanied by a proof of service indicating electronic service to the plaintiff on that same day. Per Code of Civil Procedure section 1005(b) opposition papers were due on May 21, 2026. No opposition papers were filed. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c); <i>Sexton v. Superior Court</i> (1997) 58 Cal.App.4th 1403, 1410). Failure to oppose a motion leads to the presumption that the plaintiff has no meritorious arguments. (<i>Laguna Auto Body v. Farmers Ins. Exchange</i> (1991) 231 Cal.App.3d 481, 489). Based on the foregoing, the Court SUSTAINS the demurrer. Moving party to prepare the formal Order.

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LAW AND MOTION TENTATIVE RULINGS

LINE 4	22CV397674	Teng Wu vs General Motors, LLC	Motion for Attorney's Fees and Cost Scroll down to Line 4 for Tentative Ruling.
LINE 5	25CV468882	City and County of San Francisco vs Matt Pear et al	Motion to Bifurcate Trial of Complaint for Declaratory Relief Scroll down to Line 5 for Tentative Ruling.
LINE 6	25CV481376	Twomagnets, LLC vs Coraopolis Rehabilitation and Wellness Center, LLC et al	Motion to Confirm Arbitration Award Scroll down to Line 6 for Tentative Ruling.

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9:01 A.M.			
LINE 1	Null	Null	NULL

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9:00 A.M.

Calendar Lines # 3

Case Name California Civil Rights Department vs Arcadia Management Services Co.

Case No. 26CV492170

Application for an Order to Show Cause

I. BACKGROUND

On May 5, 2026, Petitioner/California Civil Rights Department (“CRD”) filed an ex parte application for an order to show cause against Respondent Arcadia Management Services, Co. (“Arcadia”) under Government Code section 12963.5. Respondent opposed the application on that same day. The Court denied without prejudice the first application for further proof. CRD then filed a second ex parte application for an order to show cause compliance with investigative discovery on the same respondent Arcadia on May 20, 2026. CRD attempted to file the motion by noticed motion, but was not given a date until December 10, 2026. CRD filed an order shortening time before June 11, 2026. Arcadia again opposed the application. The Court granted the application and set the matter for an order to show cause no less than 10 day from the date of the Order to Show Cause and no more than 45 days from filing the Petition to Compel per Government Code section 12963.5(b).

The Court has carefully reviewed: CRD’s notice of ex parte application (totaling 2 pages); CRD’s memorandum of points and authorities (totaling 5 pages); Declaration of Nassim Moallem in support of CRD’s petition (totaling 34 pages); Arcadia’s opposition to the ex parte (totaling 6 pages); Declaration of Puneet Singh in opposition (totaling 2 pages); CRD’s notice of ex parte application (totaling 3 pages); CRD’s memorandum of points and authorities (totaling 8 pages); Declaration of Nassim Moallem in support of CRD’s petition (totaling 35 pages); Arcadia’s opposition to the ex parte (totaling 6 pages); Declaration of Puneet Singh in opposition (totaling 8 pages); Arcadia’s request to continue hearing and extend time to appear, declaration of sing and proposed order (totaling 6 pages); Arcadia’s reply brief (totaling 4 pages); and Declaration of Nassim Moallem in support of petition to compel and response to Respondent’s request to continue hearing (totaling 11 pages); proofs of services; and the pleadings.

II. LEGAL STANDARD

A. INVESTIGATIONS UNDER THE FAIR EMPLOYMENT AND HOUSING ACT

California Government Code section 12955 is part of the Fair Employment and Housing Act (“FEHA”) and prohibits housing discrimination, harassment, and relation in the state. Section 12955 prohibits unlawful conduct regarding housing such as refusal to rent, lease, sell, mortgage, finance, or otherwise discriminate against individuals based on projected categories including: race, color, religion, sex, gender, gender identity, gender expression, sexual orientation, marital status, national origin, ancestry, familial status, disability, veteran or military status, or genetic information. (Gov. Code §12955 et seq.).

Government Code section 12930 sets forth the responsibly of CRD (formerly known as the Department of Fair Employment and Housing) for investigating and prosecuting violations under the California civil rights laws, including claims under FEHA.

Government Code section 12980 provides:

- (a) Any person claiming to be aggrieved by an alleged violation of Section 12955, 12955.1, 12955.1, or 12955.7 may file with the department a verified complaint in writing that shall state the name and address of the person alleged to have committed the violation complained of, and that shall set